



DEPARTMENT OF HUMAN SERVICES

Income Maintenance (Volume 3)

ENERGY-ELECTRONIC BENEFIT TRANSFER (E-EBT)

9 CCR 2503-10

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

3.10.00 ENERGY-ELECTRONIC BENEFIT TRANSFER (E-EBT)

3.10.10 E-EBT DEFINITIONS

"Client" means a current or past recipient of SNAP.

"Colorado Electronic Benefit Transfer System (CO/EBTS)" means the electronic system that enables SNAP participants or their authorized representatives to redeem their SNAP and E-EBT benefits at point-of-sale terminals.

"EBT account" means the account linked to the EBT card where the state department deposits benefits.

"EBT card" means the card issued to persons authorized to receive benefits to which the household's allotment is credited.

"Energy Electronic Benefit Transfer Benefit (E-EBT Benefit)" means the fuel assistance payment to eligible SNAP households of at least \$20.01 that qualifies those households for the heating and cooling standard utility allowance.

"Heating/Cooling Utility Allowance (HCUA)" means a fixed deduction applied to any household that incurs a heating or cooling expense.

"Household" means a group of individuals who live together and customarily purchase and prepare food together for home consumption.

"Low-Income Home Energy Assistance Program (LEAP)" means the Colorado program designed to help low-income clients pay a portion of their winter heating costs.

"Periodic Report Form (PRF)" means the report that must be submitted by the household during the twelfth (12th) month of a twenty-four (24) month certification period. The purpose of this form is to allow the household to report any changes that occurred during the first half of the twenty-four (24) month certification period and for the state department to determine the household's continued eligibility for the remaining twelve (12) months of the household's certification period.

"Person experiencing homelessness" means an individual who lacks a fixed and regular nighttime residence or whose primary residence is: a supervised shelter designed for temporary accommodations; a halfway house or similar facility that provides temporary residence; a place not designed for or ordinarily used as regular sleeping accommodations for human beings; or a temporary accommodation in the residence of another individual for ninety (90) days or less.

"Public assistance (PA)" means the same as section 26-2-103(7), C.R.S.

“SNAP” means Supplemental Nutrition Assistance Program, formerly known as the Food Assistance program, administered by the state department in Colorado.

“State department” means the office/division within the Colorado Department of Human Services that administers E-EBT. Currently, this is the Food and Energy Assistance Division within the Office of Economic Security.

3.10.20 OVERVIEW AND REQUIREMENTS

3.10.20.1 Purpose of E-EBT

The state department shall make the fuel assistance payments to eligible households that receive SNAP benefits but that do not receive assistance under LEAP in order to qualify those households for the standard utility allowance to maximize their SNAP benefits.

The rules and regulations herein are promulgated in accordance with Program regulations of the United States Department of Agriculture (USDA), 7 U.S.C.A. § 2014(e)(6)(C)(iv):

Subject to subclause (II), a State agency elects to use a standard utility allowance that reflects heating and cooling costs, the standard utility allowance shall be made available to households that received a payment, or on behalf of which a payment was made, under the Low-Income Home Energy Assistance Act of 1981 (42 U.S.C. § 8621 *et seq.*) or other similar energy assistance program, if in the current month or in the immediately preceding 12 months, the household either received such a payment, or such a payment was made on behalf of the household, that was greater than \$20 annually, as determined by the Secretary.

3.10.20.2 E-EBT Benefit Amount

The E-EBT benefit is a cash payment of at least \$20.01. All eligible SNAP households receive the standard benefit amount regardless of income, expenses, household size, or living arrangement. The E-EBT benefit amount may be adjusted annually on October 1st based on available funding.

3.10.20.3 Program Eligibility Requirements

There is no application for the E-EBT program.

- A. A household is automatically eligible to receive the E-EBT benefit if they meet all of the following criteria:
 - 1. The household is determined to be eligible for SNAP and is currently receiving SNAP benefits;
 - 2. The household has not received LEAP at any address in the previous 12 months; and
 - 3. The household has not received E-EBT at any address in the previous 12 months.
- B. Households containing persons experiencing homelessness are eligible for E-EBT if they meet the above three requirements.
- C. Verification of utility expenses is not required.

3.10.30 BENEFIT ISSUANCE

- A. Electronic benefit issuance shall be handled by the state department through the Colorado Electronic Benefit Transfer System (CO/EBTS).
- B. The E-EBT benefit shall be issued onto the household's existing EBT card through the EBT account where SNAP benefits are issued.
- C. If a SNAP household already receives cash assistance from another state public assistance program, then the E-EBT benefit shall be issued through the same payment mechanism as the other cash assistance.

3.10.30.1 Initial Benefit Issuance

All eligible SNAP households shall be issued their initial E-EBT benefit upon implementation of the program. In the same month that a household is determined eligible for E-EBT, the household shall be eligible for the HCUA in their SNAP budget.

After the initial benefit issuance, the eligibility of households for E-EBT will be determined at the time of their SNAP application, recertification, or periodic report.

3.10.30.2 Ongoing Benefit Issuance

At the time of SNAP application, recertification, or periodic report, it shall be confirmed if the household has received LEAP in the previous 12 months.

If the household has not received LEAP in the previous 12 months and also has not received E-EBT in the previous 12 months, they shall be determined eligible for the E-EBT benefit. In the same month that a household is determined eligible for E-EBT, the household shall be eligible for the HCUA in their SNAP budget.

3.10.40 NORMAL PROCESSING STANDARDS

Determination of eligibility occurs at the time of SNAP application, recertification, or periodic report. Upon approval of benefits, E-EBT recipients shall be notified by the state department with the following information:

- A. The amount of the household's E-EBT benefit;
- B. The EBT card point of sale limitations as listed in section 26-2-104(2), C.R.S.; and
- C. The timelines for expungement as listed in 3.10.60.

3.10.50 USING E-EBT BENEFITS

- A. The state department shall not:
 - 1. Impose any restriction, either direct or implied, on a client's use of their benefit payment including, but not limited to, requesting a client to provide receipts or proof of how the money has been spent;
 - 2. Require the client to account for the use of the benefit payment, except for the Electronic Benefit Transfer (EBT) card point of sale limitations listed in 26-2-104(2), C.R.S.; or
 - 3. Give assistance to creditors in the collection of the client's debts.

- B. Clients shall not be allowed to access the E-EBT benefit through the Electronic Benefit Transfer services from automated teller machines and point of sale (POS) devices as described in Section 26-2-104(2)(II)(A), (B), (C), (D), and (E), C.R.S.

3.10.60 EXPUNGEMENT

Any E-EBT benefits issued to the EBT account that are unused after 274 days from the date of issuance will be expunged and removed from the account.

3.10.70 ERRONEOUS PAYMENTS

E-EBT payments received during a time period in which the household was later determined to not be eligible for SNAP are not considered erroneous payments and will not be collected.

Editor's Notes

History

New rule emer. rule eff. 07/01/2024.

Entire rule eff. 08/30/2024.